



Brazil

Detailed Assessment Results

I. Legal Frameworks **4.12 / 5**

II. Mining policies **2.81 / 5**

III. Investigation and enforcement **4.31 / 5**

Total score 11.24 / 15.00



Each coloured segment represents one dimension. Grey shows remaining headroom to 15.

About this scorecard

The **Amazon Mining Policy Scoreboard**, led by Amazon Conservation Association, evaluates national gold mining governance across Amazon countries. Each country is assessed across three dimensions — **Legal Frameworks**, **Mining Policies**, and **Investigation & Enforcement** — each worth up to 5 points, for a maximum total of **15 points**. Within each dimension, five categories (each normalised 0–1) are evaluated through multiple criteria.

Brazil received a total score of **11.24 out of 15.00**, ranking **3rd out of 8 Amazon countries** assessed. The pages that follow present the full set of criteria, justifications, and sources organised by dimension and category.

■ Legal Frameworks

■ Mining policies

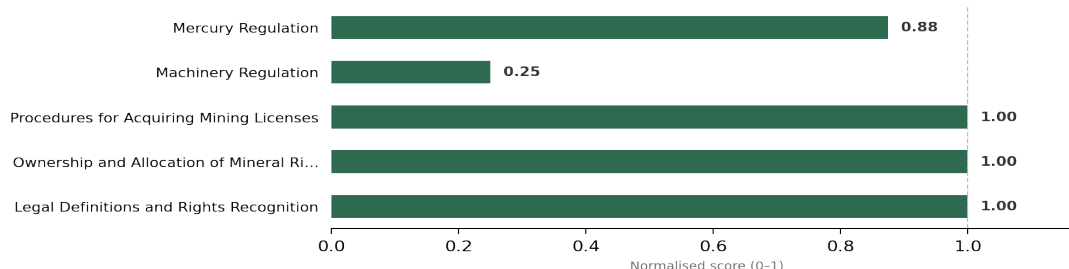
■ Investigation and enforcement

This assessment was produced by Amazon Conservation as part of the [Amazon Mining Policy Scoreboard](#), a component of [Amazon Mining Watch](#). The assessment for each country was conducted with support from, respectively: Conservación Amazonica – ACEAA (Bolivia), Instituto Centro de Vida (Brazil), Fundación para la Conservación y el Desarrollo Sostenible (Colombia), Fundación Ecociencia (Ecuador), Amazon Conservation Team (Guyana and Suriname), Conservación Amazonica – ACCA (Peru), and SOS Orinoco (Venezuela).

I. Legal Frameworks

4.12 / 5.00

Category scores



A. Legal Definitions and Rights Recognition

Score: 1.00 / 1.00

Does national legislation clearly define the legal conditions under which gold mining is permitted, and distinguish them from activities considered illegal?

1.0

Criterion 1

Justification

Brazilian legislation establishes a legal framework for gold mining, with clear distinctions between permitted and illegal activities, especially regarding artisanal and small-scale mining (MAPE). The main legal instrument regulating artisanal mining is Law No. 7,805, of July 18, 1989 [1], which instituted the Artisanal Mining Permit (PLG) regime. This regime was created to formalize and regulate artisanal mining activity, distinguishing it from illegal practices.

Sources

Law No. 7,805, of July 18, 1989. Available at: https://www.planalto.gov.br/ccivil_03/leis/l7805.htm

Does national legislation provide a clear legal definition of artisanal and small-scale mining (ASM), distinct from large-scale or industrial mining?

1.0

Criterion 2

Justification

Brazilian national legislation provides a legal definition for artisanal and small-scale mining (ASSM), primarily through Law No. 7,805 of July 18, 1989, and the Prospector Statute (Law No. 11,685 of June 25, 2008). While these laws define ASSM, the differentiation from large-scale or industrial mining is more implicit, based on the nature of the activity, the scale, and the legal regime under which it operates, rather than explicit comparative definitions in the same legal texts.

Sources

Law No. 7,805, of July 18, 1989. Available at: https://www.planalto.gov.br/ccivil_03/leis/l7805.htm

Law No. 11,685, of June 2, 2008. Available at:

https://www.planalto.gov.br/ccivil_03/_ato2007-2010/2008/lei/l11685.htm

Does the legal framework set distinct conditions or restrictions for mining activities in Indigenous territories, protected areas, mining exclusion zones and community lands, including provisions related to consent, well-informed prior consultation, or land tenure?

1.0

Criterion 3

Justification

Although Brazil has a legal framework addressing mining in indigenous territories, protected areas, and community lands, and there are ongoing efforts to regulate these activities, significant gaps and challenges exist in practice. The lack of clear and comprehensive legislation, the contentious nature of prior consultation, and persistent illegal mining activities undermine the effective protection of these areas and the rights of their inhabitants. The legal framework establishes some conditions and restrictions, but its implementation is often insufficient, leading to ongoing environmental damage and social conflict.

Sources

1988 Constitution of the Federative Republic of Brazil, Article 231, §3. Available at:

http://www.planalto.gov.br/ccivil_03/constituicao/constituicao.htm

Law No. 9,985, of July 18, 2000. Available at: http://www.planalto.gov.br/ccivil_03/leis/l9985.htm

ILO Convention No. 169. Available at: <https://www.oas.org/es/cidh/indigenas/docs/pdf/convencion-169-oit.pdf>

B. Ownership and Allocation of Mineral Rights

Score: 1.00 / 1.00

Does the law allocate ownership rights over minerals, including gold?

1.0

Criterion 4

Justification

In Brazil, the Federal Constitution, specifically Article 176, clearly establishes that mineral resources, including gold, are distinct from the soil and belong to the Union. This means that private landowners do not have inherent property rights over the minerals found on their land. The exploration and exploitation of these resources can only be carried out with the authorization or concession of the Union, according to the law. The law also guarantees the concessionaire ownership of the product of the mining.

Sources

Constitution of the Federative Republic of Brazil of 1988. Available at:

http://www.planalto.gov.br/ccivil_03/constituicao/constituicao.htm

Decree-Law No. 227, of February 28, 1967 (Mining Code). Available at:

https://www.planalto.gov.br/ccivil_03/decreto-lei/del0227.htm

Are there transparent and publicly accessible registries of mining titles, licenses, or concessions for ASM (mining cadastres)?

1.0

Criterion 5

Justification

Yes, in Brazil, the National Mining Agency (ANM) is the main government body responsible for regulating and supervising mining activities. A fundamental instrument for transparency and public access to information on mining titles, licenses, and concessions is the Mining Registry. This official system, maintained by the ANM, provides public data on mining processes throughout the country.

Sources

Is there an official and up-to-date mining registry that includes information allowing authorities to prevent overlapping concessions with existing rights, such as other titles, protected areas, or indigenous lands?

1.0

Criterion 6

Justification

Yes, Brazil has an official and up-to-date mining registration system, SIGMINE (Mining Geographic Information System), which is designed to avoid overlapping concessions with existing rights, such as other titles, protected areas, or indigenous lands. SIGMINE is a geospatial tool that allows the visualization and analysis of data on mining processes throughout the national territory.

Sources

National Mining Agency - SIGMINE. Available at: <https://www.gov.br/anm/pt-br/aceso-a-informacao/servicos/sistema-de-informacoes-geograficas-da-mineracao-sigmine>

Is there a formalization process in place for ASM workers operating without a formal permit, license and/or concession?

1.0

Criterion 7

Justification

Yes, Brazil has a formalization process for artisanal mining workers who operate without permission, license, and/or formal concession.

The main mechanism is the Artisanal Mining Permit (PLG), established by Law No. 7,805 of July 18, 1989, and regulated by the National Mining Agency (ANM). The PLG grants mining rights to individuals or cooperatives of artisanal miners to exploit mineable mineral substances such as gold in previously delimited areas, provided that environmental, labor, and safety regulations are respected.

Additionally, Decree No. 9,406 of June 12, 2018, which regulates the Mining Code (Decree-Law No. 227/1967), reinforces the legal framework for artisanal mining activity and defines the administrative procedures for requesting and maintaining the PLG with the ANM.

In 2017, Decree No. 9,406 also established the Artisanal Mining Permit Registry (RPLG) and enabled the integration of information into the ANM's Mining Registry System, which facilitates monitoring and transparency of the process.

Sources

Law No. 7,805, of July 18, 1989. Available at: https://www.planalto.gov.br/ccivil_03/leis/l7805.htm

National Mining Agency - Small-Scale Mining Permit. Available at: <https://www.gov.br/anm/pt-br/assuntos/exploracao-mineral/regimes-de-exploracao-mineral/permissoes-de-lavra-garimpeira>

Decree No. 9,406, of June 12, 2018 – Regulates the Mining Code and provides for the PLG regime. Available at: https://www.planalto.gov.br/ccivil_03/_ato2015-2018/2018/decreto/D9406.htm

C. Procedures for Acquiring Mining Licenses

Score: 1.00 / 1.00

Are there clear procedures for acquiring rights on ASM for gold?

Justification

Yes, Brazil has clear procedures for acquiring artisanal and small-scale mining rights for gold. The main instrument for this is the Artisanal Mining Permit (PLG), which is a regime for extracting mineral substances with immediate exploitation of the mineral deposit. The PLG is granted by the National Mining Agency (ANM) and is intended for Brazilians or cooperatives of artisanal miners.

The process of obtaining a PLG is digital and transparent, through the ANM's Digital Protocol. The main steps include: Application for available area via SIGMINE/SIPLOM, accompanied by the georeferenced delimitation of the polygon; Technical and legal analysis by the ANM, which verifies overlap with other mining titles or protected areas; Issuance of the PLG title, valid for up to 5 years, renewable, provided that the legal and environmental conditions are maintained; Registration and monitoring in the ANM's Mining Registry System, which ensures transparency and traceability; Compliance with environmental requirements, including obtaining specific licenses and permits from the relevant environmental agencies (municipal, state, or federal).

Sources

National Mining Agency - Small-Scale Mining Permit. Available at: <https://www.gov.br/anm/pt-br/assuntos/exploracao-mineral/regimes-de-exploracao-mineral/permissoao-de-lavra-garimpeira>

National Mining Agency – Mining Registry and Digital Protocol. Available at: <https://www.gov.br/anm/pt-br/assuntos/cadastro-mineiro>

Is there a legal framework that requires the buyer of gold to verify its legal origin?

Justification

In the judgment of Direct Actions of Unconstitutionality 7273 and 7345, the Brazilian Supreme Court declared unconstitutional the presumption of the legality of gold and the good faith of the buyer, reestablishing their duty of due diligence. In other words, since 2025, Brazilian regulations explicitly require that companies purchasing gold (such as securities and exchange dealers – DTVMs) conduct due diligence on the origin of the gold. Furthermore, the Brazilian government has adopted complementary measures: for example, since 2023 the Federal Revenue Service has required the use of a specific Electronic Invoice for the commercialization of gold, and geochemical tracking of gold is being implemented to identify its geological origin. The obligation of verification falls on formal buyers (securities and exchange dealers), since any informal buyer would be operating illegally.

Sources

<https://noticias.stf.jus.br/postsnovicias/stf-invalida-norma-que-estabelecia-presuncao-de-boafefe-no-comercio-de-ouro/>

<https://www.gov.br/secom/pt-br/assuntos/noticias/2025/03/agu-garante-fiscalizacao-mais-rigorosa-sobre-comercio-de-ouro#:~:text=Other%20measures%20already%20adopted%20by,Photo%3A%20Beto%20Nociti%2FBCB>

Are specific environmental licensing procedures established for ASM, including simplified or tailored requirements?

Justification

Yes, Brazil has established specific environmental licensing procedures for small-scale mining (MAPE), including simplified or adapted requirements. CONAMA Resolution No. 237/1997 establishes that environmental licensing for small-scale mining activities, such as MAPE, can be simplified at the discretion of the competent environmental agency. Article 12, § 1, expressly provides for the possibility of adopting simplified procedures for small-scale or low-polluting potential projects, at the discretion of the competent environmental agency. This legal provision is the normative basis for states and municipalities to adopt differentiated procedures for MAPE, avoiding the application of

requirements incompatible with the scale of artisanal operations.

Sources

CONAMA Resolution No. 237, dated December 19, 1997. Available at: <https://www.mma.gov.br/port/conama/res/res97/res23797.html>
Complementary Law No. 140, of December 8, 2011. Available at: http://www.planalto.gov.br/ccivil_03/leis/lcp/lcp140.htm

Is there a national, regional, or state government entity that oversees compliance with the implementation of artisanal and small-scale mining (ASM) operations' commitments in accordance with mining environmental licenses?

1.0

Criterion 11

Justification

In Brazil, the enforcement of environmental licenses for artisanal miners is a shared responsibility between federal and state agencies, depending on the location and scope of the activity.

The primary responsibility lies with the state environmental agencies, which are part of the National Environmental System (SISNAMA). Each state has its own institution to grant and oversee environmental licenses, such as the Brazilian Institute of Environment and Renewable Natural Resources (IBAMA) at the federal level, the Secretariat of Environment and Sustainability (SEMAS) in Pará, or the Acre Institute of Environment (IMAC). These agencies have the authority to issue, monitor, and, if necessary, suspend environmental licenses.

IBAMA acts directly when activities involve indigenous lands, federal conservation units, or more than one state, as well as in cases of serious environmental infractions with national repercussions.

The National Mining Agency (ANM) is responsible for overseeing the legality of mining operations, verifying whether they possess a valid Mining Permit (PLG) and whether they comply with the provisions of the Mining Code (Decree-Law No. 227/1967) and Law No. 7,805/1989, which establishes the mining regime.

In practice, the verification of environmental licenses falls to the competent environmental agency, whether state or federal, while the control of mining activity is the responsibility of the ANM. Both act in a complementary manner and may carry out joint operations with the Federal Police, the Federal Public Prosecutor's Office, and state agencies.

Sources

Law No. 6,938/1981 (National Environmental Policy); Law No. 7,805/1989 (Small-Scale Mining Regime); Decree-Law No. 227/1967 (Mining Code); CONAMA Resolution No. 237/1997 (Environmental Licensing); ANM (<https://www.gov.br/anm>)
IBAMA (<https://www.gov.br/ibama>).

Are mining concessions or licenses granted for a fixed period with mandatory reassessment before extension? *0.5 may be given in cases where the reassessment is mandatory, even when there is no fixed period for the mining concession

1.0

Criterion 12

Justification

The artisanal mining permit will be valid for up to 5 (five) years, and may be successively renewed at the discretion of the National Department of Mineral Production - DNPM.

Sources

D. Machinery Regulation

Score: 0.25 / 1.00

Is the use of machinery in ASM subject to regulation and licensing?

0.0

Criterion 13

Justification

The regulation and licensing of the use of machinery in artisanal and small-scale mining (ASM) in Brazil is a complex issue, characterized by an outdated legal framework and significant challenges in its application. Although some regulations exist, they often fail to adequately address the scale and impact of modern mining operations, which increasingly rely on heavy machinery.

In June 2025, the Attorney General's Office proposed to Conama the creation of a national registry of hydraulic excavators to curb illegal mining. To come into effect, the proposal needs to be assessed in technical and legal terms by the specialized Chambers that make up Conama and, in the end, must be submitted to a vote by the Plenary, which is composed of representatives from the federal, state and municipal levels, as well as civil society, business entities and the Public Prosecutor's Office.

Sources

Decree-Law No. 227/1967 (Mining Code). Available at: https://www.planalto.gov.br/ccivil_03/decreto-lei/del0227.htm

CONAMA Proposal: <https://www.gov.br/agu/pt-br/comunicacao/noticias/agu-propoe-criacao-de-cadastro-nacional-de-informacoes-ambientais-de-escavadeiras-hidraulicas>

Are environmental impact assessments (EIAs) required for mechanized ASM operations?

1.0

Criterion 14

Justification

Yes, in Brazil, mechanized mining operations are subject to the requirement of environmental impact assessments (EIA). CONAMA Resolution No. 001/1986 establishes that the licensing of activities that modify the environment, such as mineral extraction, will depend on the preparation of an environmental impact study and respective environmental impact report (EIA/RIMA).

CONAMA Resolution No. 001, of January 23, 1986, establishes in its article 2, item I, that activities that modify the environment are subject to the preparation of an Environmental Impact Study (EIA) and respective Environmental Impact Report (RIMA), expressly including, in Annex 1, item IX, "mineral extraction, including artisanal mining".

This means that artisanal mining operations using heavy machinery, dredges, hydraulic excavators, or mechanized processing systems are classified as activities that potentially cause significant environmental degradation and, therefore, must present an Environmental Impact Assessment (EIA/RIMA) before the granting of environmental licenses.

Furthermore, CONAMA Resolution No. 237/1997, in its article 3, reinforces that environmental licensing must be preceded by environmental studies proportional to the size and polluting potential of the activity, with the licensing body (state or federal) determining the need for an EIA/RIMA or simplified studies. Thus, when artisanal mining is mechanized and presents significant impacts—such as dredging of riverbeds, large-scale soil movement, or the use of polluting substances (e.g., mercury)—a complete environmental impact study is mandatory.

Sources

Are there governmental controls on the import, sale, or leasing of mining machinery?

0.5

Criterion 15

Justification

There are some government controls on the import, sale, or rental of mining machinery in Brazil, but they are limited and often ineffective in controlling the use of equipment in illegal mining activities.

The import of heavy machinery, such as hydraulic excavators, tractors, and dredges, is overseen by the Brazilian Federal Revenue Service (RFB), which requires the registration of import operations in the Integrated Foreign Trade System (SISCOMEX). The control is therefore customs and tax-related, but not specifically focused on the intended use of the equipment.

After entering the country, there is no national system to track the sale, resale, transfer, or rental of mining machinery, creating a regulatory gap. The domestic trade of this equipment is governed only by general rules of taxation and ownership, without mechanisms to verify its intended use.

Sources

Brazilian Federal Revenue Service. Available at: <https://www.gov.br/receitafederal/pt-br>
<https://www.gov.br/agu/pt-br/comunicacao/noticias/agu-propoe-criacao-de-cadastro-nacional-de-informacoes-ambientais-de-escavadeiras-hidraulicas>

Is there a national or subnational registry for heavy machinery used in mining?

0.0

Criterion 16

Justification

There is no specific national or subnational registry for heavy machinery used in mining activities in Brazil. The lack of such a registry hinders the control and monitoring of equipment use in mining activities, especially in illegal mining operations.

Sources

Office of the Attorney General of the Union (AGU) – AGU Proposes Creation of a National Registry of Environmental Information on Hydraulic Excavators (2023). Available at: <https://www.gov.br/agu/pt-br/comunicacao/noticias/agu-propoe-criacao-de-cadastro-nacional-de-informacoes-ambientais-de-escavadeiras-hidraulicas>

Are there transparent and publicly accessible registries or databases of licenses or permits granted for the use of machinery in ASM operations?

0.0

Criterion 17

Justification

There are no transparent and publicly accessible records or databases regarding licenses or permits granted for the use of machinery in MAPE operations in Brazil. This lack of transparency hinders the monitoring and oversight of equipment use in MAPE.

Sources

Office of the Attorney General of the Union (AGU) – AGU Proposes Creation of a National Registry of Environmental Information on Hydraulic Excavators (2023). Available at: <https://www.gov.br/agu/pt-br/comunicacao/noticias/agu-propoe-criacao-de-cadastro-nacional-de-informacoes-ambientais-de-escavadeiras-hidraulicas>

Are operators required to equip heavy machinery with GPS or other tracking devices for monitoring purposes?

0.0

Criterion 18

Justification

There is no legal requirement in Brazil for operators to equip heavy machinery with GPS or other tracking devices for monitoring purposes. This lack of requirement hinders the control and oversight of equipment use in mining activities, especially in illegal mining operations.

Sources

Office of the Attorney General of the Union (AGU) – AGU proposes creation of a National Registry of Environmental Information on Hydraulic Excavators (2023). Available at: <https://www.gov.br/agu/pt-br/comunicacao/noticias/agu-propoe-criacao-de-cadastro-nacional-de-informacoes-ambientais-de-escavadeiras-hidraulicas>

E. Mercury Regulation

Score: 0.88 / 1.00

Is mercury import, sale, and use regulated under national law?

1.0

Criterion 19

Justification

Yes, the import, sale, and use of mercury are regulated by national legislation in Brazil. The country is a signatory to the Minamata Convention on Mercury, enacted by Decree No. 9,470 of August 14, 2018, which establishes measures to control, reduce, and eliminate mercury emissions and releases.

Furthermore, the control of the production and marketing of substances that pose a risk to life, quality of life, and the environment, including mercury, has been provided for since Decree No. 97,634, of April 10, 1989. MMA Ordinance No. 175, of April 22, 2021, delegates to the Brazilian Institute of Environment and Renewable Natural Resources (IBAMA), through the Directorate of Environmental Quality, the competence to act as the national authority responsible for receiving notifications, issuing consents, and expressing opinions regarding requests for the import and export of controlled substances, in accordance with the Stockholm, Rotterdam, and Minamata Conventions.

More recently, IBAMA Normative Instruction No. 26, of December 10, 2024, established the environmental control requirements and procedures applicable to the import, export, trade, transfer, recycling, recovery, use, and transportation of metallic mercury, as well as the disposal of mercury waste within the national territory. According to Article 5 of this regulation, all importers, exporters, and traders must register with IBAMA and record operations in a digital system, using the CTF/APP (Federal Technical Registry of Potentially Polluting Activities and Users of Environmental Resources). Article 6 establishes the mandatory prior notification and authorization for the movement of mercury, and Article 7 requires companies to annually inform IBAMA of their stocks and the final destination of controlled substances.

These regulatory instruments demonstrate that Brazil has a robust and up-to-date legal framework to guarantee the control and traceability of mercury at all stages of the supply chain, in accordance with the international commitments undertaken by the country.

Sources

Minamata Convention on Mercury. Available at: <https://www.mercuryconvention.org/>

IBAMA - Mercury Control. Available at:

<https://www.gov.br/ibama/pt-br/assuntos/quimicos-e-biologicos/mercurio-metalico>

DECREE No. 97,634, OF APRIL 10, 1989 - Provides for the control of the production and marketing of substances that pose a risk to life, quality of life, and the environment, and makes other provisions.

DECREE No. 9,470, OF AUGUST 14, 2018 - Enacts the Minamata Convention on Mercury, signed by the Federative Republic of Brazil in Kumamoto on October 10, 2013.

MMA ADMINISTRATIVE RULE No. 175, OF APRIL 22, 2021 - Delegates authority to the Brazilian Institute of the Environment and Renewable Natural Resources — IBAMA, through the Directorate of Environmental Quality, to act as the designated authority responsible for receiving notifications, issuing consents, and ruling on requests for the import and export of substances that have been restricted in other countries, in accordance with the provisions of the Stockholm, Rotterdam, and Minamata Conventions.

IBAMA REGULATORY INSTRUCTION No. 26, OF DECEMBER 10, 2024 - Establishes the requirements and environmental control procedures for the import, export, trade, transfer, recycling, recovery, use, and transport of metallic mercury, as well as the disposal of mercury waste within the national territory.

Are there specific restrictions or bans on mercury use in ASM?

1.0

Criterion 20

Justification

Yes, the use of mercury in artisanal and small-scale mining (ASM) is subject to specific restrictions in Brazilian legislation, although there is not yet a total ban in effect.

Brazil is a signatory to the Minamata Convention on Mercury, promulgated by Decree No. 9,470/2018, which obliges countries to reduce and, where possible, eliminate the use of mercury in artisanal gold mining activities. Nationally, Decree No. 97,634/1989 establishes controls on the production and marketing of substances that pose a risk to life and the environment, including mercury. Additionally, IBAMA Normative Instruction No. 26/2024 defines strict rules for the import, trade, transport, use, and disposal of metallic mercury waste, also applying to ASM activities.

Despite these restrictions, the use of mercury in artisanal mining still occurs irregularly, especially in Amazonian areas. The lack of traceability, illegal trade, and insufficient environmental oversight hinder the effective implementation of regulations. This regulatory gap motivated the presentation of Bill No. 1011/2023, currently under consideration in the Chamber of Deputies, which proposes a total ban on the production, import, export, and use of metallic mercury and its compounds in national territory, including artisanal mining.

Thus, although there are explicit legal restrictions, the absence of a specific prohibition and the limited effectiveness of control measures justify the partial score assigned.

Sources

Decree No. 9,470, of August 14, 2018 – Enacts the Minamata Convention on Mercury. Available at: Planalto

Decree No. 97,634, of April 10, 1989 – Provides for the control of the production and marketing of substances that pose a risk to life and the environment.

IBAMA Normative Instruction No. 26, dated December 10, 2024 – Establishes requirements and procedures for environmental control of the import, export, trade, and use of metallic mercury.

Bill No. 1011/2023 – Provides for the prohibition of the production, import, export, and use of metallic mercury and its compounds.

Is there a system for tracking the origin, distribution, and final use of mercury?

0.5

Criterion 21

Justification

Although Brazil has legal frameworks and initiatives in place to control mercury, especially through its adherence to the Minamata Convention and recent regulatory updates (such as IBAMA's IN No. 26), the practical implementation

and effectiveness of a comprehensive tracking system for mercury in artisanal and small-scale gold mining (ASM) is still under development and faces significant challenges, including illegal trafficking and difficulties in monitoring the informal mining sector. According to Article 5 of this regulation, all importers, exporters, and traders must register with IBAMA and record operations in a digital system using the CTF/APP (Federal Technical Registry of Potentially Polluting Activities and Users of Environmental Resources). Article 6 establishes the mandatory prior notification and authorization for mercury movement, and Article 7 stipulates that companies must annually inform IBAMA of their stocks and the final destination of controlled substances.

Sources

IBAMA Normative Instruction No. 26, dated December 10, 2024. Available at:

<https://www.in.gov.br/en/web/dou/-/instrucao-normativa-ibama-n-26-de-10-de-dezembro-de-2024-529602379>

Are there procedures in place for the seizure, transport, and final disposal of confiscated mercury, especially following operations against illegal gold mining?

1.0

Criterion 22

Justification

Brazil has established a legal and regulatory framework to control mercury, particularly in the context of artisanal and small-scale gold mining (ASM), which inherently includes provisions for the seizure, transport, and final disposal of confiscated mercury. While specific public documents and step-by-step instructions detailing the exact procedures for confiscated mercury were not explicitly found in this initial research, the overall legal and operational context strongly indicates its existence and ongoing development.

The main regulatory instrument currently in force is IBAMA Normative Instruction No. 26, of December 10, 2024, which establishes the requirements and procedures for environmental control of the import, export, trade, transfer, recycling, recovery, use, transport, and disposal of metallic mercury waste.

According to Article 10 of this regulation, the transport of metallic mercury, including that seized in inspection operations, must follow specific safety and traceability rules, observing ANTT Resolution No. 5,947/2021, which regulates the land transport of hazardous products.

Furthermore, Article 11 of the same Normative Instruction determines that seized mercury must be temporarily stored in licensed facilities and subsequently sent for environmentally appropriate disposal, through recovery, recycling, or confinement in security cells duly authorized by the competent environmental agency.

To guide the application of these procedures, IBAMA published the technical document "Practical Guide for the Management of Seized Metallic Mercury Waste" (2023), which provides a detailed step-by-step guide for public agents and licensed entities responsible for handling confiscated mercury.

Sources

Decree No. 9,470, of August 14, 2018. Available at:

https://www.planalto.gov.br/ccivil_03/_ato2015-2018/2018/decreto/d9470.htm

Guide "Practical Guide for the Management of Seized Metallic Mercury Waste" (2023): <https://mpmt.mp.br/portalcas/n/ews/731/104827/livro---guia-pra769tico-para-o-gerenciamento-de-resi769duos-de-mercu769rio-meta769lico-apreendi-do>

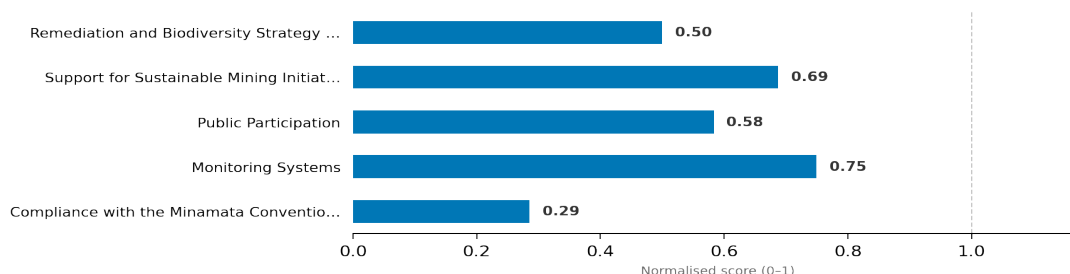
IBAMA Normative Instruction No. 26, dated December 10, 2024. Available at:

<https://www.ibama.gov.br/component/legislacao/?view=legislacao&legislacao=139445>

II. Mining policies

2.81 / 5.00

Category scores



F. Compliance with the Minamata Convention on Mercury

Score: 0.29 / 1.00

Is the country a signatory or Party to the Minamata Convention on Mercury?

1.0

Criterion 23

Justification

Brazil is a signatory and Party to the Minamata Convention on Mercury. The country signed the Convention in Kumamoto on October 10, 2013. The Brazilian Congress approved the Convention through Legislative Decree No. 99, of July 6, 2017. Brazil deposited its instrument of ratification with the UN Secretary-General on August 8, 2017, and the Convention entered into force for Brazil on November 8, 2017.

Sources

Ministry of the Environment and Climate Change - Minamata Convention on Mercury. Available at: <https://www.gov.br/mma/pt-br/assuntos/meio-ambiente-urbano-recursos-hidricos-qualidade-ambiental/seguranca-quimica/convencao-de-minamata-sobre-mercuro>

LEGISLATIVE DECREE No. 99, OF 2017 - Approves the text of the Minamata Convention on Mercury, adopted in Kumamoto, Japan, on October 10, 2013.

DECREE No. 9,470, OF AUGUST 14, 2018 - Enacts the Minamata Convention on Mercury, signed by the Federative Republic of Brazil in Kumamoto on October 10, 2013.

Has the country ratified the Minamata Convention?

1.0

Criterion 24

Justification

The Convention, signed in Kumamoto, Japan, on October 10, 2013, was promulgated in Brazil by Decree No. 9,470, of August 14, 2018, making its provisions fully valid in the national legal system. This international treaty establishes mandatory rules for the control of the production, trade, use, and disposal of mercury and its compounds, in addition to determining specific measures for artisanal and small-scale gold mining (ASM), considered the main source of mercury emissions and contamination in the country.

Sources

Ministry of the Environment and Climate Change - Minamata Convention on Mercury. Available at: <https://www.gov.br/mma/pt-br/assuntos/meio-ambiente-urbano-recursos-hidricos-qualidade-ambiental/seguranca-quimica/convencao-de-minamata-sobre-mercuro>

Has the country submitted an initial assessment report as part of its participation in the Convention?

0.0

Criterion 25

Justification

No, Brazil did not submit its Initial Assessment Report (MIA) as part of its participation in the Minamata Convention.

Sources

<https://minamataconvention.org/en/parties/minamata-initial-assessments>

Has the country developed and submitted a National Action Plan (NAP) on mercury in accordance with the Convention?

0.0

Criterion 26

Justification

Brazil is currently developing its National Action Plan (PAN) for artisanal and small-scale gold mining (ASM), but has not yet finalized and submitted it. The project to develop the PAN was launched in November 2022, with the aim of creating strategies to eliminate the use of mercury in ASM.

Sources

Ministry of Mines and Energy - Project Launch - National Action Plan for Mercury-Free Gold Mining. Available at: https://www.youtube.com/watch?v=K_X4pkBEG2A

Does the NAP explicitly mention forests or forest ecosystems in the context of mercury reduction strategies?

0.0

Criterion 27

Justification

Currently, Brazil does not yet have a formally submitted National Action Plan (NAP) to the Secretariat of the Minamata Convention on Mercury, as stipulated in Article 7 and Annex C of the Convention. According to the official Minamata Convention website (minamataconvention.org/en/parties/national-action-plans), Brazil is not among the countries that have already submitted their national action plan.

Sources

Minamata Convention on Mercury – List of submitted National Action Plans (NAPs): <https://minamataconvention.org/en/parties/national-action-plans>

United Nations Environment Programme (UNEP) – Development of National Action Plan for Artisanal and Small-Scale Gold Mining in Brazil (GEF Project ID 11045). Available at: <https://www.unep.org/gef/projects/development-national-action-plan-artisanal-and-small-scale-gold-mining-brazil>

Does the NAP specifically refer to the Amazon region in its analysis, objectives, or proposed actions?

0.0

Criterion 28

Justification

Currently, Brazil does not yet have a formally submitted National Action Plan (NAP) to the Secretariat of the Minamata Convention on Mercury, as stipulated in Article 7 and Annex C of the Convention.

Does the NAP take into account intersectional approaches?

0.0

Criterion 29

Justification

Currently, Brazil does not yet have a formally submitted National Action Plan (NAP) to the Secretariat of the Minamata Convention on Mercury, as stipulated in Article 7 and Annex C of the Convention.

G. Monitoring Systems

Score: 0.75 / 1.00

Are there government-led monitoring systems for environmental and social impacts of ASM?

1.0

Criterion 30

Justification

Brazil has comprehensive, government-led monitoring systems to assess the environmental and social impacts of artisanal and small-scale mining (ASSM). These systems are in place and actively used to inform policies, enforce regulations, and mitigate the negative impacts of mining.

A recent study by the Ministry of Mines and Energy (MME) provides a detailed picture of gold mining in Brazil and proposes pathways to legal and sustainable activity. In July 2025, the MME delivered the Panorama of Small-Scale Mining, a groundbreaking study on gold mining in Brazil. Coordinated by the MME, the preparation of the diagnosis was supported by the United Nations through the Global Environment Facility. The execution was carried out by the Foundation for Technological Development in Engineering (FDTE) and the Research Center for Responsible Small-Scale Mining (Nap.Mineração) of USP.

The study highlights the economic importance of small-scale gold mining (SM&M), which accounts for 27% of national gold production, but also acknowledges the serious associated environmental and social problems, such as deforestation and mercury use. The Ministry of Mines and Energy (MME), in collaboration with the Intergovernmental Forum on Mining (IGF), created a SM&M task force to lead the formalization and promote sustainability. This task force is developing regulations for health, safety, and environmental protection, as well as licensing and certification regimes.

Furthermore, the Federal Public Prosecutor's Office (MPF) and the Federal Police are using the "Gold Mining Impact Calculator," a tool developed in partnership with the Conservation Strategy Fund (CSF) and the World Bank, to economically assess the social and environmental damages of small-scale gold mining. This tool has been instrumental in increasing fines for environmental damage, especially those related to mercury pollution, by almost tenfold.

Sources

Studies on the National Panorama of Gold Mining:

<https://ourosemmercurio.com.br/2025/07/30/confira-os-estudos-do-panorama-nacional-da-mape-de-ouro/>

Unpublished study provides an overview of gold mining in Brazil and proposes pathways for legal and sustainable activity — Ministry of Mines and Energy: <https://www.gov.br/mme/pt-br/assuntos/noticias/estudo-inedito-mostra-retrat-o-do-garimpo-de-ouro-no-brasil-e-propoe-caminhos-para-atividade-legal-e-sustentavel>

Gold mining plummets and new infrastructure is built in the Yanomami Indigenous Territory following two years of action by the Federal Government — National Foundation of Indigenous Peoples: <https://www.gov.br/funai/pt-br/assuntos/noticias/2025/garimpo-despenca-e-nova-infraestrutura-e-erguida-na-terra-indigena-yanomami-em-dois-anos-de-acoes-do-governo-federal>

Supporting Progress in Brazil's Artisanal and Small-Scale Mining Sector - Intergovernmental Forum on Mining: <https://www.igfmining.org/impactstory/supporting-progress-brazil-asm/>

Is satellite or geospatial monitoring used to detect illegal or unlicensed ASM activities?

1.0

Criterion 31

Justification

Brazil actively employs satellite and geospatial monitoring to detect illegal or unlicensed artisanal and small-scale gold mining (ASM) activities. The National Institute for Space Research (INPE) uses remote sensing, including the DETER system, to monitor deforestation and mining in protected areas. For example, the DETER system identified an increase in illegal mining on Yanomami lands in 2021, leading to government action.

Furthermore, advanced technologies are being developed and utilized. A new machine learning algorithm analyzes Sentinel-2 satellite imagery to quickly and accurately detect new deforestation fronts for gold mining with a resolution of 10 meters. This algorithm revealed that deforestation for gold mining in the Yanomami Indigenous Territory was much greater than previously thought, with over 2,000 hectares deforested since 2019, and 67% of that occurring in 2022.

Non-governmental organizations also contribute to this monitoring. Greenpeace Brazil developed the 'Papa Alpha' georeferencing tool, which processes satellite data in near real-time to monitor deforestation and illegal mining. Papa Alpha integrates data from two systems: GLAD (Global Land Analysis and Discovery), which uses optical satellite imagery to detect changes every 5 days with 30x30 meter alerts, and RADD (Radar for Detecting Deforestation), which uses Sentinel-1 radar images to penetrate clouds for more precise and near real-time detection of forest disturbances.

These systems indicate that monitoring is carried out with detection capabilities at least annually and, in some cases, much more frequently (e.g., every 5 days or near real-time).

Sources

<https://envolverde.com.br/politica-publica/ambiente/como-as-imagens-de-satelite-combatem-a-mineracao-ilegal-na-amazonia-brasileira/>

<https://www.maaprogram.org/pt-br/maap-181-portugues/>

<https://www.greenpeace.org/brasil/blog/conheca-o-papa-alpha-o-sistema-de-monitoramento-do-greenpeace-brasil/>

Can governmental satellite monitoring systems distinguish between artisanal, semi-mechanized, and mechanized mining activities?

0.5

Criterion 32

Justification

Brazil possesses advanced governmental satellite monitoring systems, operated primarily by the National Institute for Space Research (INPE), the Management and Operational Center of the Amazon Protection System (CENSIPAM), and the Brazilian Institute of Environment and Renewable Natural Resources (IBAMA), which allow for the detection and monitoring of the expansion of mining areas, including gold mining in the Legal Amazon.

Among the main active governmental systems are:

DETER-B (Real-Time Deforestation Detection – INPE)

DETER-B, maintained by INPE within the scope of the Amazon Program (TerraBrasilis), uses medium-resolution satellite images (Sentinel-2, MODIS, and WFI/CBERS-4) to detect areas of altered forest cover, classifying them into

categories such as "deforestation," "mining," "selective logging," and "degradation."

The "mining" category allows for the identification of active illegal mining operations and the expansion of mined areas, serving as a basis for enforcement actions by IBAMA (Brazilian Institute of Environment and Renewable Natural Resources) and the Federal Police.

However, the system does not formally distinguish between artisanal, semi-mechanized, and mechanized mining, since its resolution (10–30 m) and scope are geared towards detecting land use and land cover, and not the operational characterization of activities.

SIPAMSAR / CENSIPAM (Integrated Amazon Monitoring System)

CENSIPAM, an agency linked to the Ministry of Defense, operates the SIPAMSAR system, which integrates optical and radar (SAR) images with field data to monitor illegal activities in remote areas, including illegal mining in riverbeds and protected areas.

The system provides operational alerts to security forces (Army, IBAMA, and Federal Police) and supports the Amazon Plan 2023–2026.

Although it can detect distinct patterns of dredges and river mining fronts, there is still no published governmental technical protocol that systematically classifies the different types of mining (artisanal, semi-mechanized, or mechanized).

IBAMA Environmental Inspection System (GEO-IBAMA)

IBAMA maintains the GEO-IBAMA system, which integrates DETER-B alerts, PRODES data (annual deforestation monitoring), and contracted high-resolution images (PlanetScope, SkySat, and Amazonia-1) to plan environmental inspection operations.

The system allows for the identification of the size of mined areas and evidence of mechanization (such as access roads, clearings, and the presence of machinery), but this distinction depends on human analysis and contextual interpretation, not on automatic classification.

Sectoral Thematic Systems (FUNAI, Ministry of Mines and Energy, ANM)

FUNAI operates territorial monitoring modules in Indigenous Lands, in cooperation with CENSIPAM and INPE, which identify active mining operations and support actions to protect affected communities.

The National Mining Agency (ANM), in partnership with the Ministry of Mines and Energy (MME), uses DETER-B data and remote sensing to cross-reference valid mining titles and areas of illegal exploitation, but without operational differentiation between mining scales.

Therefore, Brazilian government satellite monitoring systems are effective in detecting mining areas, allowing for rapid and georeferenced responses by enforcement agencies. However, the automated distinction between artisanal, semi-mechanized, and mechanized mining is not yet technically consolidated or institutionally standardized. This differentiation depends on subsequent interpretive analysis by specialists and field inspection, and is not a native capability of official sensing systems.

Sources

DETER B: <https://www.gov.br/inpe/pt-br/area-conhecimento/unidade-amazonia/projetos-e-pesquisas/deter>

CENSIPAM: <https://www.gov.br/censipam/pt-br>

GEO-IBAMA: <https://www.gov.br/ibama>

Is mercury concentration measured by the government in potentially affected water bodies, the food chain and/or populations?

0.5

Criterion 33

Justification

Brazil does not have a continuous, integrated, and nationally coordinated government program for the systematic monitoring of mercury contamination in water bodies, the food chain, and exposed human populations, especially in areas of artisanal and small-scale mining (ASM). However, there are efforts and specific programs conducted by federal and state public agencies, often in partnership with research and health institutions, that carry out periodic measurements and surveys.

Several studies and reports highlight the problem:

Oswaldo Cruz Foundation (Fiocruz) – linked to the Ministry of Health Fiocruz coordinates, in cooperation with the Special Secretariat for Indigenous Health (SESAI), several epidemiological studies and biomonitoring of mercury in indigenous and riverside populations in the Amazon.

A 2016 survey, conducted in partnership with the Socio-Environmental Institute (ISA), found mercury contamination levels exceeding 90% among the Yanomami in areas impacted by mining.

In 2019, a study by Fiocruz found that 56% of indigenous people in Maturacá and Ariabu (Amazonas) had mercury levels above the WHO limit (2 µg/g of hair). These studies, while relevant, are isolated and reactive, carried out as epidemiological investigations and not as part of a permanent environmental and public health monitoring system.

National Foundation for Indigenous Peoples (FUNAI) and Ministry of Health (SESAI) In indigenous areas, especially in the Yanomami Territory, the federal government initiated an emergency health and environmental remediation plan in 2023, which includes punctual collections of biological and water samples to assess mercury contamination.

These actions were intensified in the context of the Yanomami humanitarian crisis, but do not constitute a permanent biomonitoring program.

International Partnerships and Integrated Data Brazil participates in regional projects supported by the United Nations Environment Programme (UNEP) and the Amazon Cooperation Treaty Organization (ACTO) to develop methodologies for measuring mercury in fish and sediments; however, the data are still collected experimentally and in a decentralized manner.

In summary, although the problem of mercury contamination is well documented by scientific and non-governmental organizations, and Brazil is a signatory to international agreements, there is no explicit evidence from the sources consulted that the Brazilian government systematically measures mercury concentration in the specified areas as a direct and continuous program related to MAPE.

Sources

<https://noticias.uol.com.br/ultimas-noticias/deutschewelle/2023/02/16/mercurio-do-garimpo-contamina-a-natureza-por-tempo-indeterminado.htm>

<https://agencia.fiocruz.br/estudo-aponta-niveis-elevados-de-mercurio-em-indigenas>

Fiocruz / Socio-Environmental Institute (ISA) – Study finds high levels of mercury in Yanomami indigenous people. (2016–2019). Available at: <https://agencia.fiocruz.br/estudo-aponta-niveis-elevados-de-mercurio-em-indigenas>

FUNAI: <https://www.gov.br/funai/pt-br/assuntos/noticias/2025/funai-participa-de-lancamento-do-manual-tecnico-para-atendimento-aos-povos-indigenas-expostos-ao-mercurio-no-brasil>

OTCA - Regional Overview of Mercury in the Amazon Basin: <https://aguasamazonicas.otca.org/study-will-provide-a-regional-overview-of-the-mercury-contamination-situation-in-the-amazon-basin/?lang=en>

Are there legal channels for civil society oversight or participation in monitoring and enforcement?

1.0

Criterion 34

Justification

In Brazil, the legal channels for civil society participation in the supervision, monitoring, and oversight of artisanal and small-scale mining (ASM) are not explicitly defined or robustly implemented in specific legal frameworks for ASM. Although the Brazilian Constitution generally guarantees the freedoms of association, peaceful assembly, and expression, and the legal framework broadly supports the exercise of these rights, direct and specific legal channels for civil society oversight of ASM are limited.

Previously, Decree 10.966/2022, of February 11, 2022, established the Program to Support the Development of Artisanal and Small-Scale Mining (Pró-Mape) and an Interministerial Commission for the Development of Artisanal and Small-Scale Mining (Comape). However, this decree was revoked by Decree 11,369/2023, of January 1, 2023. Under Decree 10,966/2022, civil society participation in the Comape was restricted to invitations to meetings without voting rights, indicating a limited formal channel for direct involvement. With its revocation, even this limited and specific formal channel for MAPE ceased to exist.

The "Action Plan for the Review of the Independent Reporting Mechanism: Brazil 2023–2027" highlights Brazil's commitments to promoting transparency and citizen oversight, especially in infrastructure projects. While this indicates a broader governmental recognition of the importance of civil society engagement and transparency, it does not specifically address MAPE.

In summary, although there is a general constitutional right to participation and some broader initiatives for transparency and citizen oversight, specific and effective legal channels for civil society to oversee, monitor, and audit MAPE in Brazil are absent or have been dismantled.

Sources

<https://www.opengovpartnership.org/documents/brazil-action-plan-review-2023-2027/>

https://www.planalto.gov.br/ccivil_03/_ato2019-2022/2022/decreto/D10966.htm

https://www.planalto.gov.br/ccivil_03/_ato2023-2026/2023/decreto/D11369.htm

Is there an official, accessible, safe, and functional channel for individuals or communities to file complaints related to ASGM activities or associated environmental impacts?

1.0

Criterion 35

Justification

Yes. Brazil has official, accessible, secure, and functional channels for individuals and communities to file complaints, although there is no channel exclusively dedicated to MAPE activities and their environmental impacts. The main channel is Fala.BR, a platform of the Comptroller General of the Union (CGU), used to send complaints, grievances, and reports to the federal public administration. Through this system, it is possible to direct a complaint directly to the National Mining Agency (ANM) or other competent bodies.

For complaints related to environmental infractions, IBAMA offers the Linha Verde service, which receives reports on deforestation, illegal mining, and other environmental crimes. The service can be accessed free of charge by calling 0800 061 8080 or through the electronic form available in the "Talk to IBAMA" section of the institutional website.

In addition, the Federal Public Prosecutor's Office (MPF) maintains its own channels for receiving complaints of environmental crimes, including cases of illegal mining. The Federal Public Prosecutor's Office (MPF) plays a central role in investigating and holding offenders accountable and in repairing environmental damage, working in partnership with regulatory bodies and the Federal Police.

Sources

<https://www.gov.br/ibama/pt-br/assuntos/noticias/2021/linha-verde-do-ibama-fale-conosco>

<https://falabr.cgu.gov.br/web/home>

<http://www.mpf.mp.br/servicos/sac>

<https://agenciabrasil.ebc.com.br/geral/noticia/2020-07/aplicativo-permite-denuncias-de-crimes-ambientais-na-amazonia>

Are there processes for public consultation with affected communities in mining-related decisions?

0.0

Criterion 36

Justification

Yes. In Brazil, environmental legislation requires public hearings as part of the environmental licensing process for projects with significant environmental impact, such as mining. This requirement aims to guarantee social participation and transparency in decision-making that affects local communities and the environment.

CONAMA Resolution No. 09/1987 establishes the guidelines for holding public hearings, defining their objectives, methods of convening, and stages. According to Article 1, the purpose of the hearing is "to present the content of the Environmental Impact Report (EIR) to interested parties, clarify doubts, and gather criticisms and suggestions." Article 3 stipulates that the hearing must be conducted by the responsible environmental agency, guaranteeing space for all interested parties to express their views.

Furthermore, Brazil is a signatory to Convention No. 169 of the International Labour Organization (ILO), ratified by Decree No. 5,051/2004 and consolidated by Decree No. 10,088/2019, which ensures indigenous peoples and traditional communities the right to prior, free and informed consultation (FPIC) on administrative or legislative measures that may directly affect them (Articles 6 and 15). However, the implementation of this right still faces challenges, such as delays and lack of representativeness in consultation processes.

In 2019, IBAMA published Draft Normative Instruction No. 4,206,327, which defines three modalities of social participation: (i) Public Hearing, in person and open to any interested party, applied to projects subject to EIA/RIMA; (ii) Informative Technical Meeting, aimed at projects not subject to EIA/RIMA; (iii) Public Consultation, of a consultative nature, to obtain contributions from society in IBAMA's administrative processes.

Despite the regulatory framework, the practical effectiveness of these mechanisms is still limited. Many hearings are conducted in a perfunctory manner, with low inclusion of affected communities and little influence of social contributions on final decisions.

Sources

https://www.planalto.gov.br/ccivil_03/decreto/1990-1994/d10028.htm

<https://www.oas.org/es/cidh/indigenas/docs/pdf/convencion-169-oit.pdf>

https://www.planalto.gov.br/ccivil_03/_ato2019-2022/2019/decreto/d10088.htm?utm_source=chatgpt.com

https://www.gov.br/ibama/pt-br/acao-a-informacao/editais-e-convites/consultas-publicas/arquivos/consultapublica/2019/2019-04-SEI_IBAMA-%20206327-MinutaIN.pdf

Are civil society complaints taken into account in the authorization or assessment processes of mining projects?

0.5

Criterion 37

Justification

Yes, complaints from civil society can be considered in the authorization and evaluation processes of mining projects in Brazil. Based on received complaints, the Public Prosecutor's Office can initiate civil investigations to investigate irregularities and, if necessary, file lawsuits to suspend or annul illegally granted mining licenses.

Furthermore, complaints can support the actions of environmental agencies, such as IBAMA, in the inspection of mining projects. IBAMA can conduct inspections and issue fines to companies that are violating environmental legislation.

IBAMA, through its Green Line (<https://www.gov.br/ibama/pt-br/assuntos/denuncias>), and the National Mining Agency (ANM), via the Federal Government's General Ombudsman (<https://www.gov.br/anm>), receive complaints and petitions that can be incorporated into mining evaluation and inspection processes.

Sources

<http://www.mpf.mp.br/>

<https://www.gov.br/ibama/pt-br>

Do national programs on ASM include specific measures to support the participation of women, Indigenous peoples, or traditional communities?

0.0

Criterion 38

Justification

In Brazil, there is currently no structured and effective national program dedicated exclusively to the inclusion and participation of women, indigenous peoples, and traditional communities that incorporates specific and continuous measures to promote the inclusion and participation of women, indigenous peoples, and traditional communities.

However, the National Policy Plan for Women (National Secretariat for Policies for Women / Ministry of Women) and the National Plan for Traditional Peoples and Communities (Ministry of Agrarian Development and Family Agriculture) recognize the role of rural and traditional women in extractive and community-based productive activities, which could include artisanal mining in specific contexts.

Sources

[2] CIMI. (2022). *Report on Violence Against Indigenous Peoples in Brazil*. Available at:

<https://cimi.org.br/wp-content/uploads/2022/08/relatorio-violencia-contra-os-povos-indigenas-no-brasil-2021-cimi.pdf>

National Secretariat for Women's Policies – National Plan for Women's Policies 2024–2027.

Available at: <https://www.gov.br/mulheres>

Are there protocols for the care and protection of victims and witnesses of crimes related to or derived from illegal mining? *0.5 may be given in cases there are general protection of witnesses and victims programs, but not specific for illegal mining

1.0

Criterion 39

Justification

Brazil was a pioneer in South America in establishing a framework for witness protection: Law 9807/1999 created the Federal Program for Assistance to Victims and Witnesses, known as PROVITA. In recent years, in the face of the Yanomami humanitarian crisis caused by illegal mining in the Amazon, the Brazilian government has reinforced these

measures: in 2025, the Ministry of Human Rights allocated extraordinary resources to adapt PROVITA to the collective protection of indigenous communities threatened by illegal miners.

Furthermore, the Federal Public Prosecutor's Office created a specialized unit to combat illegal mining in the Amazon, which coordinates prevention and repression actions, and includes the protection of indigenous witnesses who denounce miners on their lands.

Sources

<https://www.gov.br/mdh/pt-br/navegue-por-temas/pessoas-ameacadas-de-morte/acoes-e-programas/programa-de-protecao-a-vitimas-e-testemunhas-ameacadas-provita/legislacao#:~:text=Law%209,of%20defendants%20or%20convicted%20persons%20who>

I. Support for Sustainable Mining Initiatives

Score: 0.69 / 1.00

Are there public programs to support formalization through incentives to and capacity-building of ASM gold miners?

1.0

Criterion 40

Justification

Yes, Brazil has public programs that support formalization through incentives and capacity building for artisanal and small-scale gold miners in the MAPE (Ministry of Agriculture, Livestock and Supply). The Program to Support the Development of Artisanal and Small-Scale Mining (Pró-Mape), the Artisanal Mining Permit (PLG), and the "ASGM – Coexistence in Brazil" project from USP (University of São Paulo) are clear examples of these initiatives, which aim at regularization, the adoption of best practices, and the training of artisanal miners.

Pró-Mape, established by Decree No. 10,966/2022, aims to integrate and strengthen public policies for the sustainable development of artisanal and small-scale mining. The program seeks to promote best practices, formalization, and cooperation, as well as encourage the health, assistance, and dignity of the communities involved.

The Artisanal Mining Permit (PLG) is a regime for the extraction of mineral substances with immediate exploitation of the mineral deposit that, due to its nature, size, location, and economic use, can be mined independently of prior research work, according to criteria established by the National Mining Agency (ANM). The PLG is an important instrument for formalizing artisanal mining activity.

Sources

Ministry of Mines and Energy. *Clarifications on the Program to Support the Development of Artisanal and Small-Scale Mining and the Improvement of the Mining Code*. Published on February 17, 2022. Available at: <https://www.gov.br/mme/pt-br/assuntos/noticias/esclarecimentos-sobre-o-programa-de-apoio-ao-desenvolvimento-da-mineracao-artesanal-e-em-pequena-escala-e-aprimoramento-do-codigo-de-mineracao>

Gov.br Portal. *Apply for a Prospecting Permit*. Available at: <https://www.gov.br/pt-br/servicos/requerer-permissao-de-lavra-garimpeira>

USP Polytechnic School. *USP project prepares prospectors for the 21st century, with a focus on sustainability*. Available at: <https://www.poli.usp.br/noticias/noticiasdapoliusp/projeto-da-usp-prepara-garimpeiros-para-o-seculo-xxi-com-foco-na-sustentabilidade/>

Are there accessible financing mechanisms promoted by the State to support sustainable practices as an alternative to unsustainable ASM gold mining?

0.0

Criterion 41

Justification

Brazil has some public financing and credit mechanisms aimed at sustainable ventures, which could, in theory, benefit artisanal miners or formal cooperatives of the MAPE (Mining and Agricultural Production System). However, there are no specific and widely accessible financing lines aimed at encouraging small-scale sustainable mining practices.

For example, there are financing funds managed by the Bank of the Amazon and the Bank of Brazil, such as the Constitutional Financing Fund for the North and Midwest. These funds offer credit for sustainable productive ventures in the Amazon region and the Midwest.

However, there is no direct financing to promote sustainable small-scale mining in Brazil. At an event in October 2025 held by the newspaper *Correio Braziliense*, the president of the Federation of Mining Cooperatives of the State of Mato Grosso, Gilson Camboin, stated that the organized artisanal mining sector seeks to strengthen legality and eliminate the use of mercury, but faces difficulties due to a lack of support and financing.

Furthermore, the Ministry of Mines and Energy (MME) is forging a partnership with the United Nations Environment Programme (UNEP) for a small-scale gold mining project. This initiative, announced on July 4, 2025, aims to promote safer and more sustainable practices in the sector, aligning with Brazil's commitments to the Minamata Convention.

Sources

[1] National Mining Agency. ANM joins unprecedented global initiative to transform small-scale mining. gov.br/anm. May 15, 2025. Available at: <https://www.gov.br/anm/pt-br/assuntos/noticias/anm-integra-iniciativa-global-inedita-para-transformar-a-mineracao-em-pequena-escala>

[2] Ministry of Mines and Energy. MME coordinates partnership with the UN for small-scale gold mining project. gov.br/mme. July 4, 2025. Available at: <https://www.gov.br/mme/pt-br/assuntos/noticias/mme-articula-parceria-com-a-onu-para-projeto-de-mineracao-de-ouro-em-pequena-escala>

https://www.correiobraziliense.com.br/economia/2025/10/7264877-garimpo-legal-cobra-linhas-de-credito-e-capacitacao-para-eliminar-uso-de-mercuro.html#google_vignette

Are safer mercury-free technologies promoted through incentives or support programs?

1.0

Criterion 42

Justification

Yes, Brazil is actively promoting safer, mercury-free technologies in artisanal and small-scale gold mining (ASPM) through various incentives and support programs, driven primarily by its commitment to the Minamata Convention on Mercury. The most prominent initiative in this regard is the "Mercury-Free Gold Project."

This project, launched in November 2022, is a collaborative effort between Brazil's Ministry of Mines and Energy (MME), the United Nations Environment Programme (UNEP), and is funded by the Global Environment Facility (GEF). Its main objective is to support Brazil in developing and implementing a National Action Plan to reduce and ultimately eliminate mercury pollution from gold extraction, with a specific focus on ASPM.

Furthermore, the Ministry of Mines and Energy (MM) is coordinating a partnership with the UN for a small-scale gold mining project. The initiative aims to promote safer and more sustainable practices in the sector, in line with the commitments made by the country in the Minamata Convention on Mercury, which aims to protect health and the environment.

Sources

"With support from the Mercury-Free Gold Project, MME seeks to build partnerships to strengthen the Mercury-Free Gold MAPE" - Mercury-Free Gold website (<https://ourosemmercurio.com.br/2025/07/04/com-apoio-do-projeto-ouro-se-m-mercurio-mme-busca-articulacao-de-parceria-para-fortalecer-mape-de-ouro-sem-mercurio/>)

"Sustainability in mining: MME launches project to reduce mercury use in gold mining" - Website of the Ministry of Mines and Energy (MME) (<https://www.gov.br/mme/pt-br/assuntos/noticias/sustentabilidade-na-mineracao-mme-lanca-projeto-para-reduzir-uso-de-mercurio-na-extracao-de-ouro>)

<https://www.gov.br/mme/pt-br/assuntos/noticias/mme-articula-parceria-com-a-onu-para-projeto-de-mineracao-de-ouro-em-pequena-escala>

Are women, traditional communities and Indigenous peoples specifically included in sustainable ASM initiatives?

0.5

Criterion 43

Justification

Research on Criterion 51, concerning the inclusion of women and indigenous peoples in sustainable artisanal and small-scale mining (ASSM) initiatives in Brazil, reveals a complex and often contradictory scenario. While some initiatives and milestones recognize the importance of these groups, the reality on the ground, especially regarding illegal mining, presents significant challenges.

The IRMA Standard for Responsible Mining [1] provides a framework that, in principle, supports the inclusion of women and indigenous peoples in ASSM. Specifically, Chapter 3.6, dedicated to Artisanal and Small-Scale Mining, highlights the involvement of men and women in ASSM activities [1, p. 292]. It emphasizes the need to engage diverse stakeholders, including informal operators and associations, and suggests that different approaches may be necessary for men and women.

However, the reality of illegal mining, especially in indigenous territories, is marked by violence, exploitation, and human rights violations. Reports indicate that the presence of illegal miners on indigenous lands leads to increased violence, including sexual violence against indigenous women and girls.

Sources

[2] CIMI. (2022). *Report on Violence Against Indigenous Peoples in Brazil*. Available at:

<https://cimi.org.br/wp-content/uploads/2022/08/relatorio-violencia-contra-os-povos-indigenas-no-brasil-2021-cimi.pdf>

Are there governmental programs to collaborate with NGOs, academic institutions, or international agencies to promote sustainable ASM practices?

1.0

Criterion 44

Justification

Yes, Brazil demonstrates clear government programs and active collaboration with NGOs, academic institutions, and international agencies to promote sustainable practices in artisanal and small-scale mining (ASGM), as evidenced by its partnerships with UNEP, participation in the Global Coalition for Action on ASGM, and the National Action Plan for Mercury-Free Gold Mining.

The Ministry of Mines and Energy (MME) is developing a partnership with UNEP for a small-scale gold mining project, aiming to promote safer and more sustainable practices in the sector. Brazil also participates in the Global Coalition for Action on Artisanal and Small-Scale Mining (ASGM), which seeks to transform the sector into a catalyst for sustainable development.

The National Action Plan for Mercury-Free Gold Mining, launched in November 2022, is a collaborative effort involving several Brazilian ministries, with financial support from the GEF and technical assistance from UNEP and the

Foundation for Technological Development in Engineering (FDTE).

Sources

<https://www.gov.br/mme/pt-br/assuntos/noticias/mme-articula-parceria-com-a-onu-para-projeto-de-mineracao-de-ouro-em-pequena-escala>

<https://www.gov.br/anm/pt-br/assuntos/noticias/anm-integra-iniciativa-global-inedita-para-transformar-a-mineracao-em-pequena-escala>

https://www.youtube.com/watch?v=K_X4pkBEG2A

<https://ibram.org.br/wp-content/uploads/2021/02/00004089.pdf>

Are there clear protection mechanisms for individuals working in areas of mining?

1.0

Criterion 45

Justification

Yes, there are protection mechanisms for mining workers. Brazilian labor law establishes occupational safety and health standards, which are monitored by the Ministry of Labor and Employment. Furthermore, inspection operations rescue workers from conditions analogous to slavery in illegal mining areas, demonstrating the State's role in protecting workers' rights.

Sources

Regulatory Standard 22 - Occupational Safety and Health in Mining

Joint operation rescues workers in conditions analogous to slavery in AM

Is there recognition or promotion of international certification schemes by the government?

0.5

Criterion 46

Justification

The Brazilian government, particularly through the Ministry of Mines and Energy (MME) and the National Mining Agency (ANM), demonstrates interest in recognizing and promoting certifications for responsible mining practices, including those relevant to artisanal and small-scale gold mining (ASM). While there is no explicit and direct governmental endorsement of 'Fairmined' or 'CRAFT' certifications as official government schemes, there are clear indications of related governmental and institutional efforts to align with international standards and promote traceability and responsible practices in the ASM sector.

Key findings:

Recognition of Standards-Based Certifications (MME/ANM): The Brazilian government, through the MME, has an initiative entitled 'Recognition of Standards-Based Certifications'. This initiative, active from November 1, 2023 to January 22, 2024, aimed to establish guidelines for the use of accredited inspection of mining companies. The central idea is to encourage the creation of and adherence to certifications based on technical standards and models that promote better environmental, social, and governance (ESG) practices.

ANM Global Initiative for Small-Scale Mining: The National Mining Agency (ANM) is integrating a global initiative to transform small-scale mining. This initiative, supported by the World Gold Council, governments, companies, and civil society, aims to transform a sector marked by informality and violations into a lever for sustainable development. Brazil is considered a strategic actor in this process.

Partnership between the OCB System and ARM for the CRAFT Code: The OCB System (Organization of Brazilian Cooperatives) and the Alliance for Responsible Mining (ARM) have established a partnership to bring the OECD's international Due Diligence benchmark to Brazil, adapted to the reality of artisanal and small-scale mining (ASM), through the implementation of the CRAFT Code. This partnership, formalized on June 27, 2023, aims to support

Brazilian mining cooperatives in challenges related to traceability, management, and risk mitigation.

Fairmined and CRAFT as Fundamental Tools: An article by ApexBrasil (Brazilian Trade and Investment Promotion Agency) from May 14, 2025, highlights that tools such as Fairmined, CRAFT, and RJC certifications are fundamental to ensuring transparency and generating trust in responsible mining.

In short, although there is no direct governmental 'promotion' of Fairmined or CRAFT as official Brazilian certifications, the government and related institutions are actively engaged in creating frameworks and supporting initiatives that recognize and align with international standards such as CRAFT, and acknowledge the importance of certifications like Fairmined for responsible MAPE (Management of Endocrinology, Employment, and Tourism).

Sources

<https://www.gov.br/participamaibrasil/reconhecimento-de-certificacoes-baseadas-em-padroes>

<https://www.gov.br/anm/pt-br/assuntos/noticias/anm-integra-iniciativa-global-inedita-para-transformar-a-mineracao-em-pequena-escala>

<https://somoscooperativismo.coop.br/noticias-esg/sistema-ocb-firma-parceria-com-arm-para-a-rastreabilidade-mineral>

<https://apexbrasil.com.br/pt/conteudo/noticias/Mineracao-responsavel-e-atratividade-para-investimentos-colocam-Brazil-em-pauta-no-ICA-Congress-2025.html>

Is there a government incentive for the adoption of gold certification?

0.5

Criterion 47

Justification

Brazil does not have legally structured direct incentives, but it does provide technical and political support for initiatives that promote certification and traceability, such as the "Green Gold Seal" and the policies of the DDSM/MME. These efforts constitute indirect and structural incentives for responsible gold certification.

Brazil has been actively pursuing initiatives to promote gold certification, particularly for artisanal and small-scale mining (ASM), as a way to combat illegality and foster sustainable practices. A significant initiative is the "Green Gold Seal" project, which focuses on the certification and traceability of gold produced in the Pan-Amazon region. This project involves Brazil and other member countries of the Amazon Cooperation Treaty Organization (ACTO).

The "Green Gold Seal" project is led by the Instituto Biotec Amazônia, which won a federal government tender to implement this initiative. The project aims to transform artisanal mining into legal and sustainable operations by providing a system for certified and traceable gold. The process involves microanalysis using X-ray fluorescence and other digital technologies to create a geochemical database for each gold-producing region.

From the perspective of government agencies, the Ministry of Mines and Energy (MME), through its Department of Sustainable Development in Mining (DDSM), plays a crucial role in strengthening public policies for sustainable mining. The DDSM's objectives include integrating mineral policy with environmental, social, and territorial policies, and focusing on incentives for social responsibility and corporate sustainability in the mining sector. Its work is aligned with the Minamata Convention on Mercury, aiming to reduce and eliminate the use of mercury in MAPE (Mining, Energy, and Preservation).

While direct financial incentives for individual miners to adopt certification are not explicitly detailed as generalized programs, government support for projects like the "Green Gold Seal" and its broader policy framework for sustainable mining indicate a structure of indirect incentives. The certification itself, by increasing market value and ensuring legality, acts as a significant economic incentive for producers.

Sources

<https://www.gov.br/mme/pt-br/assuntos/noticias/mme-lanca-projeto-para-plano-de-acao-nacional-para-extracao-de-ouro-sem-mercurio>

<https://www.gov.br/mme/pt-br/assuntos/secretarias/sngm/desenvolvimento-sustentavel-na-mineracao>

J. Remediation and Biodiversity Strategy Integration

Score: 0.50 / 1.00

Is ASM gold mining recognized in the country's National Biodiversity Strategy and Action Plan (NBSAP)?

0.0

Criterion 48

Justification

Brazil's National Strategy and Action Plan for Biodiversity (NSBAP), under the Convention on Biological Diversity, does not explicitly recognize artisanal and small-scale gold mining (ASGM) or its specific impacts/management in detail. Although the NSBAP broadly addresses biodiversity conservation and mentions 'mining' as an activity with environmental impacts, a direct link to or specific recognition of ASGM gold mining within the NSBAP framework, as required by Criterion 53, was not found through keyword searches in the document.

Sources

https://www.gov.br/mma/pt-br/assuntos/biodiversidade-e-biomas/biodiversidade1/convencao-sobre-diversidade-biologica/epanb_port.pdf (EPANB Document)

<https://www.gov.br/mme/pt-br/assuntos/noticias/mme-lanca-projeto-para-plano-de-acao-nacional-para-extracao-de-ouro-sem-mercurio/MME.pdf> (MAPE National Action Plan for Gold Mining - PAN Document)

Does the country have specific programs, targets, or funding mechanisms for ecosystem restoration in areas affected by ASM gold mining?

0.5

Criterion 49

Justification

Partially. Brazil has legal instruments and environmental programs of national scope that address the recovery of areas degraded by mining activities, including artisanal gold mining (MAPE). However, there is no specific federal program dedicated exclusively to the restoration of ecosystems degraded by MAPE, nor are there exclusive financing mechanisms for this purpose.

Brazilian legislation obliges entrepreneurs, including formalized artisanal miners, to recover areas degraded by mining, as stipulated in the Mining Code (Decree-Law No. 227/1967) – Article 47 and Decree No. 9.406/2018 (which regulates the Mining Code) – Article 98.

Law No. 12.651/2012 (New Forest Code) – Article 41: creates the Environmental Regularization Program (PRA) and mechanisms for the recovery of degraded Permanent Preservation Areas and Legal Reserves, also applicable to areas affected by mining.

Furthermore, the National Program for the Recovery of Native Vegetation (Proveg), created by Decree No. 8,972/2017, and the National Plan for the Recovery of Native Vegetation (Planaveg) aim to restore 12 million hectares by 2030, including areas degraded by mining, but without specifying the type of activity or source of degradation.

Axis 5.2 of Planaveg proposes to “support the implementation of restoration projects linked to large-scale compensation involving large financial volumes (originating from energy, mining, transportation, water, and sanitation projects)”.

Axis 8.3 of Planaveg proposes to “regulate mechanisms for the allocation and monitoring of a portion of the financial compensation resources from oil and natural gas exploration, mining, and energy generation activities for native vegetation restoration (RVN) projects, prioritizing public areas and socially and/or environmentally sensitive areas”.

These goals acknowledge mining as a driver of degradation and foresee the use of compensatory resources for ecosystem recovery, but do not directly address artisanal mining (MAPE).

Sources

Sustainability in Foreign Trade: Mapping of Actions, Initiatives, and Public Policies in Brazil. (May 2025). Available at: <https://www.gov.br/mdic/pt-br/assuntos/camex/resolucoes/grupo-de-trabalho-de-comercio-e-sustentabilidade/sustentabilidade-no-comercio-exterior-mapeamento-de-aco-es-iniciativas-e-politicas-publicas-no-brasil.pdf>

Supporting Progress in Brazil's Artisanal and Small-Scale Mining Sector. (June 12, 2021). Intergovernmental Forum on Mining. Available at: <https://www.igfmining.org/impactstory/supporting-progress-brazil-asm/>

Brazil renews plan to restore degraded land half the size of the UK. (November 7, 2024). Mongabay. Available at: <https://news.mongabay.com/short-article/brazil-renews-plan-to-restore-degraded-land-half-the-size-of-the-uk/>

Restoring Brazil's Rainforest Can Power an Environmental and Economic Transformation. (May 31, 2025). IDB Invest. Available at:

<https://idbinvest.org/en/blog/development-impact/restoring-rainforest-can-drive-powerful-environmental-and-economic>

https://www.planalto.gov.br/ccivil_03/decreto-lei/del0227.htm

https://www.planalto.gov.br/ccivil_03/_ato2015-2018/2018/decreto/d9406.htm

https://www.planalto.gov.br/ccivil_03/_ato2015-2018/2017/decreto/d8972.htm

Are there requirements or guidance for restoration, remediation, or compensation for degraded areas?

1.0

Criterion 50

Justification

Brazil has a comprehensive legal and regulatory framework that requires the restoration, remediation, and compensation of areas degraded by mining activities. These requirements are enshrined in the Federal Constitution (Article 225, Paragraph 2) and detailed in various decrees, laws, and normative instructions. The Degraded Area Recovery Plan (PRAD), established by Decree 97.632/89, is a crucial instrument that requires mining projects to present a detailed plan for environmental recovery, generally during the environmental licensing process with the Environmental Impact Study (EIA) and the Environmental Impact Report (RIMA).

The Mining Code Regulations (Decree No. 9.406, of June 12, 2018) further details the responsibilities of miners, including the prevention, mitigation, and compensation of environmental impacts, the preservation of workers' health and safety, the prevention of environmental disasters, and the environmental recovery of impacted areas. This includes mine closure and decommissioning of all facilities, such as tailings dams. Failure to comply with these obligations may lead to administrative, civil, and criminal liabilities, with sanctions described in Law 9.605/98 (Law on Environmental Crimes and Administrative Offenses) and Federal Decree 6.514/08, including fines and imprisonment.

Although the National Plan for the Recovery of Native Vegetation (Planaveg) and the National Program for the Recovery of Native Vegetation (Proveg) are not specific to artisanal mining (MAPE), both recognize mining activity as a driver of degradation and propose mechanisms for financial compensation and large-scale ecological restoration. Established by Decree No. 8,972/2017, Planaveg presents guidelines also applicable to the mineral sector:

Action 5.2 – Support the implementation of native vegetation recovery (RVN) projects linked to large-scale environmental compensation, including mining, energy, transportation, water, and sanitation projects.

Action 8.3 – Proposes the regulation of the allocation of part of the financial compensation resources from mining (CFEM) and other extractive sectors to ecological restoration projects and funds, prioritizing public and sensitive areas.

For artisanal and small-scale gold mining (MAPE), the Program to Support the Development of Artisanal and Small-Scale Mining (Pró-Mape), established by Decree No. 10,966/2022, aims to integrate and strengthen policies for sustainable development, encouraging best practices, formalization, and the promotion of health, assistance, and dignity in the communities involved.

Sources

<https://www.conjur.com.br/2016-set-10/ambiente-juridicoobligacao-recuperar-areas-mineracao-contornos-peculiares/>

<https://www.dnpm-pe.gov.br/Legisla/RCM.htm>

<https://www.ibama.gov.br/component/legislacao/?view=legislacao&legislacao=139412>

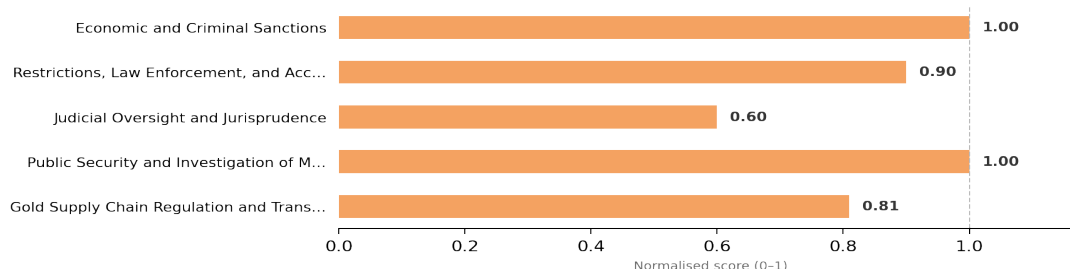
<https://www.gov.br/mme/pt-br/assuntos/noticias/esclarecimentos-sobre-o-programa-de-apoio-ao-desenvolvimento-da-mineracao-artesanal-e-em-pequena-escala-e-aprimoramento-do-codigo-de-mineracao>

<https://www.gov.br/mma/pt-br/composicao/sbio/dflo/plano-nacional-de-recuperacao-da-vegetacao-nativa-planaveg>

III. Investigation and enforcement

4.31 / 5.00

Category scores



K. Gold Supply Chain Regulation and Transparency

Score: 0.81 / 1.00

Does the country require formal registration of all actors in the ASM gold supply chain (miners, traders, and exporters)?

1.0

Criterion 51

Justification

Yes, Brazil requires formal registration of the main actors in the MAPE gold supply chain. Artisanal miners must obtain a Mining Permit (PLG) from the National Mining Agency (ANM). Financial institutions and cooperatives that buy gold at the source must be authorized by the Central Bank and the ANM, and all transactions must be documented with invoices. A decision by the Supreme Federal Court (STF) in March 2025 eliminated the presumption of good faith, obligating all buyers, including exporters, to prove the legal origin of the gold, which reinforces the need for formal registrations throughout the chain.

Sources

DRAFT LAW No. 3,025 OF 2023 - Planalto

Apply for a Small-Scale Mining Permit - Gov.br

LAW No. 7,766, OF MAY 11, 1989 - Planalto

STF invalidates rule establishing presumption of good faith in the gold trade - STF News

Are there specific permits or procedures required for exporting ASM gold?

1.0

Criterion 52

Justification

Yes, although there are no direct export permits for MAPE (Mining Areas of the Amazon), the Brazilian legal system channels MAPE gold into the formal domestic market through authorized financial institutions before export. Law No. 7,766/89 requires that gold from mining be sold to institutions authorized by the Central Bank. The recent overturning of the "good faith" rule by the Supreme Federal Court and the implementation of electronic invoicing for gold have increased control over the origin of gold, ensuring that only legally acquired gold can be exported.

Sources

Law No. 7,766, of May 11, 1989

Exclusive: End of Good Faith in Gold Trade Reduces Declared Gold Mining Activity in the Amazon - Repórter Brasil

Are files on ASM areas, including titles, licenses, embargoes, and monitored zones, available in open, updated formats compatible with geospatial analysis systems?

0.5

Criterion 53

Justification

Brazil offers open and up-to-date data on mining through SIGMINE and the ANM Mining Registry, in formats compatible with geospatial systems. However, the explicit and easily accessible categorization of all MAPE areas, including embargoed and monitored zones, and their direct link to inspection and judicial data, is not yet fully clear and accessible to the public, justifying the partial score.

Sources

Mining Geographic Information System (SIGMINE)

Mining Registry System

Is there a strategy in place to ensure the traceability of gold from extraction to final sale?

0.5

Criterion 54

Justification

Brazil has traceability mechanisms, but they are still insufficient and have loopholes that allow illegal gold to enter the market. The Supreme Court's decision to end the presumption of good faith and the proposal of technologies such as DLT and molecular marking indicate an effort to improve the system, but full and effective implementation has not yet been achieved.

Sources

Escolhas Institute. (2022). Gold Tracking System: Challenges and Recommendations.

Brasil Mineral. (March 20, 2025). GOLD | STF Ruling Ends Presumption of Good Faith in the Sale of Gold from Small-Scale Mines.

Is disclosure of transactions between miners, traders, and exporters mandatory?

1.0

Criterion 55

Justification

Yes, the disclosure of transactions is mandatory in Brazil. The implementation of the Electronic Invoice for Gold (NF-e Ouro) in 2023 made the issuance of an electronic invoice mandatory for the first purchase of raw gold, for imports, exports, and domestic transactions. The Supreme Court's decision against the presumption of good faith further reinforces the need for verification and disclosure of the origin of gold.

Sources

RFB Normative Instruction No. 2,138, dated March 29, 2023

STF rules that the origin of gold in Brazil cannot be attested to by the seller's word

Does the legal framework require financial institutions to verify the legal provenance of gold-related transactions?

1.0

Criterion 56

Justification

Yes, financial institutions are required to conduct due diligence. The Supreme Federal Court's decision in March 2025, which eliminated the presumption of good faith, imposes the obligation to verify the legal origin of gold. Furthermore, the Money Laundering Law (Law No. 9.613/98) and regulations from the Central Bank and COAF (Council for Financial Activities Control) require financial institutions to implement anti-money laundering policies, including client

identification and reporting of suspicious transactions.

Sources

Supreme Federal Court (STF) invalidates rule establishing presumption of good faith in gold trading - STF News Law No. 9,613, of March 3, 1998

Is there a centralized digital/electronic registry for gold supply chain transactions accessible to regulatory authorities and civil society?

0.5

Criterion 57

Justification

Brazil is developing a centralized digital registration system, but it is not yet fully implemented and accessible. Bill PL 3025/2023 proposes the creation of SIG-Ouro, an electronic system to monitor and record all gold transactions. Currently, information is scattered across different systems, such as those of the Federal Revenue Service (NF-e) and the ANM (National Mining Agency), with limited access for civil society.

Sources

DRAFT LAW No. 3,025 OF 2023 - Planalto
Escolhas Institute. (2022). Gold Traceability System: Challenges and Recommendations.

Are there protocols for information sharing and joint enforcement with neighboring countries?

1.0

Criterion 58

Justification

Yes, Brazil has protocols for the exchange of information and joint law enforcement with neighboring countries. The Federal Police and the Armed Forces conduct joint operations with neighboring countries to combat cross-border crimes, including gold smuggling and illegal mining. The AURUM project also promotes the exchange of information and best practices among institutions in Amazonian countries.

Sources

Federal Police - International Cooperation
AURUM - Prevention of Illegal Gold Mining in the Amazon

L. Public Security and Investigation of Mining-Related Crimes

Score: 1.00 / 1.00

Do public security bodies have specific strategies in place for safeguarding Indigenous and traditional communities against crimes related to mining in their territories?

1.0

Criterion 59

Justification

Yes, Brazil's public security forces, in conjunction with other government agencies, have specific strategies for protecting indigenous communities. The Kayapó Indigenous Land De-intrusion Operation (OD-TIKAY) and actions in the Yanomami Indigenous Land are examples of large-scale operations aimed at dismantling illegal mining and protecting indigenous territories and populations. These operations involve the Federal Police, the Armed Forces, FUNAI (National Indian Foundation), and IBAMA (Brazilian Institute of Environment and Renewable Natural Resources), among others.

Sources

Federal operation inflicts R\$79 million in losses on illegal mining in the Kayapó Indigenous Territory — Ministry of Indigenous Peoples

With more than 3,000 operations in 2024, the Federal Government inflicts R\$267 million in losses on mining in the Yanomami Indigenous Territory

Are there specialized police and prosecutor units for environmental crimes or illegal mining with effective coverage in critical areas?

1.0

Criterion 60

Justification

Yes, Brazil has specialized units. The Federal Police has specialized departments for environmental crimes and conducts large-scale operations against illegal mining. The Federal Public Prosecutor's Office (MPF) has specialized prosecutors for the environment and indigenous rights, who investigate and bring legal action against illegal mining. These units operate throughout the national territory, including critical areas of the Amazon.

Sources

Federal Police - Environment

Federal Public Prosecutor's Office - Environment and Cultural Heritage

Is there a clear procedure for investigating crimes related to mining?

1.0

Criterion 61

Justification

Yes, there is a clear procedure. The investigation of mining-related crimes follows the procedures of the Brazilian Code of Criminal Procedure. The Federal Police is primarily responsible for investigating federal crimes, such as illegal mining on federal lands or indigenous lands. The Federal Public Prosecutor's Office monitors the investigations and may request the initiation of inquiries. The investigations involve the collection of evidence, the carrying out of expert analyses, and the hearing of witnesses, culminating in the indictment of those responsible and the filing of charges in court.

Sources

Code of Criminal Procedure

Federal Police - Investigation

Does the country have bilateral or multilateral protocols or agreements in place to coordinate joint police operations for the enforcement of environmental and mining laws?

1.0

Criterion 62

Justification

Brazil actively participates in regional agreements and initiatives aimed at combating illegal mining and environmental crimes in the Amazon. It is a founding member of the Amazon Cooperation Treaty (1978), which provides for joint actions among Amazonian countries to preserve the environment and control cross-border illicit activities. It also maintains bilateral agreements with neighbors, such as the Brazil-Colombia security agreement, which includes joint operations on the Amazonian border against illegal mining and deforestation, and the Brazil-Peru action plan (2009) for sustainable development and combating environmental crimes in the Acre-Madre de Dios-Pando region.

Sources

<https://news.mongabay.com/2025/08/cross-border-operation-cracks-down-on-environmental-crimes-in-the-amazon/#:~:text=Police%20seized%20more%20than%20310,bulldozers%2C%20trucks%2C%20crushers%20and%20other>

Have courts issued binding decisions related to illegal gold mining or its socio-environmental impacts in the last five years?

1.0

Criterion 63

Justification

Yes, Brazilian courts have issued important binding decisions in the last five years. The Supreme Court's decision in March 2025, which ended the presumption of good faith in the gold trade, is an example of a decision with an impact on the entire production chain. Furthermore, the Federal Courts have issued preliminary injunctions to halt illegal mining activities and hold offenders accountable, as in the case of the Japurá River in Amazonas.

Sources

Supreme Court rules that the origin of gold in Brazil cannot be attested to by the seller's word alone
Court orders halt to illegal gold mining on the Japurá River in Amazonas

Have judicial decisions or jurisprudence recognizing natural ecosystems as subjects of rights generated legal restrictions, obligations, or the imposition of sanctions in legal cases related to mining activities?

0.0

Criterion 64

Justification

No, Brazilian jurisprudence does not yet recognize natural ecosystems as subjects of law in a way that generates direct legal restrictions in mining cases. Although the debate on "Rights of Nature" exists in academia and in some specific legal initiatives, there is no body of consolidated judicial decisions that apply this concept to impose sanctions or obligations on mining activities.

Sources

Nature as a Subject of Rights - ((o))eco

Can individuals or communities file collective environmental actions or constitutional remedies in mining-related cases?

1.0

Criterion 65

Justification

Yes, Brazilian law allows individuals and communities to file collective environmental actions and constitutional appeals. The Public Civil Action (ACP) is a widely used instrument for defending the environment and the rights of communities affected by mining. The ACP can be filed to prevent, correct, or repair environmental damage, and can be brought by the Public Prosecutor's Office (Federal or State), Public Defender's Office, the Union, States, Municipalities and Autonomous Agencies, Foundations and public companies, and civil associations and NGOs legally constituted for at least one and a half years.

Through the Popular Action (Law No. 4717/1965), any citizen can file a lawsuit on behalf of the community, aiming to protect public and social assets, including the environment. This action can be brought against acts or omissions of public authorities or entities that violate the Federal Constitution, the law, or the principles of public administration, causing harm to the collective interest. It can be used, for example, to challenge environmental licenses granted irregularly for mining projects.

Another constitutional remedy that can be used is the Collective Writ of Mandamus (Law No. 12.016/2009), for the protection of a clear and certain right threatened by an illegal act or abuse of authority. It can be filed by political parties, professional associations, unions, and civil associations. It can be applied, for example, in cases where the State fails to provide environmental information or issues licenses without prior public consultation.

Sources

Illegal Gold Mining in the Amazon Basin: Problems and Challenges Identified for Class Action - Igarapé Institute
R\$ 170 Billion Agreement for Reparations for the Mariana Disaster is Approved by the Federal Court

Is judicial action allowed in defense of diffuse environmental interests (such as ecosystem protection or public health) without the need to demonstrate individual harm?

1.0

Criterion 66

Justification

Yes, Brazilian law allows for the defense of diffuse interests. The Public Civil Action, provided for in Law No. 7.347/85, is the main instrument for defending diffuse and collective interests, such as the environment and public health. The Public Prosecutor's Office, the Public Defender's Office, the Union, the States, the Municipalities, and civil associations can bring this type of action without needing to demonstrate individual damage.

The Superior Court of Justice (STJ) and the Supreme Federal Court (STF) have a settled understanding that environmental damage is diffuse and imprescriptible, consolidating the jurisprudence that proof of individual damage is not necessary to bring environmental actions.

In its decision REsp 1354536/SE, the STJ defined that liability for environmental damage is objective, informed by the theory of integral risk, with a causal link necessary to connect the act to the consequence. Thus, it is sufficient to establish the damage and the causal link between the conduct (active or passive) and the harm to the environment, regardless of the existence of fault or intent on the part of the polluting agent.

However, the Supreme Federal Court, in Extraordinary Appeal (RE) 654833, ruled that the existence of fundamental individual rights does not affect the supremacy of the public interest in relation to the conservation of an ecologically balanced and healthy environment.

Sources

Law No. 7,347, of July 24, 1985

Is there an interstate coordination mechanism for the investigation and prosecution of transboundary environmental crimes related to mining?

0.0

Criterion 67

Justification

There is no formal and specific interstate coordination mechanism for the investigation and prosecution of cross-border environmental crimes related to mining. Although there are occasional cooperations between states and the federal government, jurisdiction to prosecute environmental crimes is defined by the Constitution and may vary depending on the case, which hinders coordination.

Sources

Jurisdiction to Prosecute Environmental Crimes - Legal Advisor

Does the government enforce compliance of regulations related to illegal ASM, including through sanctions for environmental damages and non-compliance?

1.0

Criterion 68

Justification

Yes, the Brazilian government has effectively enforced regulations against illegal artisanal gold mining. Large-scale operations in the Yanomami and Kayapó Indigenous Territories, which resulted in the destruction of equipment, the dismantling of mining operations, and millions of dollars in losses for the criminals, demonstrate the government's actions. The 84% drop in declared artisanal gold production in 2024 also reflects the effectiveness of the enforcement.

Sources

With over 3,000 operations in 2024, the Federal Government imposes a fine of R\$ 267 million on gold mining in the Yanomami Indigenous Territory

Increased enforcement leads to an 84% drop in gold extraction - Agência Brasil

Can licenses be suspended or revoked in cases of environmental law violations or social violations?

1.0

Criterion 69

Justification

Yes, in Brazil, mining licenses can be suspended or revoked in cases of environmental or social violations, as evidenced by several legal frameworks and real-world examples. The legal basis for such actions is robust, stemming from federal laws and regulations, and enforced by relevant government agencies.

Law No. 6,938/1981, which establishes the National Environmental Policy (PNMA), stipulates in its Article 10 that the construction, installation, expansion, and operation of any activity that uses environmental resources, is effectively or potentially polluting, or capable of causing environmental degradation, requires prior environmental licensing.

Furthermore, in the same Law, Article 14, item IV, stipulates that failure to comply with the measures necessary for the preservation or correction of the damage caused will subject the transgressors to the suspension of their activity.

Brazilian Law No. 9,605/1998 (Environmental Crimes Law), in its articles 70 to 72, establishes administrative sanctions that include partial or total suspension of activities, revocation of environmental authorizations and licenses, and temporary closure of establishments. These measures can be applied by the bodies that are part of the National Environmental System (SISNAMA), such as IBAMA, state and municipal environmental agencies, and, in the case of mining, also by the National Mining Agency (ANM), which acts in conjunction with environmental agencies.

Furthermore, the sole paragraph of article 21 of Law No. 7805/1989 stipulates that mineral extraction carried out without the proper permission, concession, or license will result in the seizure of the mineral product, machinery, vehicles, and equipment used.

Sources

Law No. 6,938, of August 31, 1981 (National Environmental Policy). Available at:
http://www.planalto.gov.br/ccivil_03/leis/l6938.htm

Law No. 9,605, of February 12, 1998 (Environmental Crimes Law). Available at:
http://www.planalto.gov.br/ccivil_03/leis/l9605.htm

Law No. 7805/1989, Amending Decree-Law No. 227, of February 28, 1967:
http://www.planalto.gov.br/ccivil_03/leis/l7805.htm

Are there specific sanctions or criminal categories related to damage caused by mercury?
***0.5 may be given in cases where there is general sanctions on waste disposal and environmental harm, but none directly related to mercury.**

0.5

Criterion 70

Justification

Brazil addresses environmental damage caused by mercury primarily through environmental legislation and criminal law. The basis is the Environmental Crimes Law (Law 9.605/1998), which classifies pollution and the irregular use of hazardous substances as crimes. Article 54 considers it a crime to cause "pollution of any kind at levels that result or may result in harm to human health, death of animals, or significant destruction of flora." The law provides for more severe penalties when pollution renders areas uninhabitable, requires evacuation, or violates regulations on waste disposal.

Although the Mining Code historically did not expressly prohibit mercury, mining operations that use it are already subject to environmental oversight and criminal liability based on these general provisions. There is also a legislative initiative underway: in 2024, Bill 2,417/2024 was introduced, proposing to explicitly prohibit the use of mercury in all mining activities in the country, granting the sector a two-year period for the complete elimination of the substance.

Sources

Law 9.605/1998

Bill PL 2417/2024

Is there any legal obligation to adopt rehabilitation and/or compensation measures where environmental damage has been found?

1.0

Criterion 71

Justification

Yes, Brazilian law establishes the obligation of rehabilitation and compensation for environmental damage. The Federal Constitution, the National Environmental Policy (Law No. 6,938/81), and the Environmental Crimes Law provide for civil, administrative, and criminal liability for environmental damage, including the obligation to repair the damage. Environmental licensing processes also require the submission of plans for the recovery of degraded areas.

Sources

Federal Constitution of 1988

Law No. 6,938, of August 31, 1981

Can sanctions be applied based on remote evidence (e.g., satellite images)?

1.0

Criterion 72

Justification

Yes, the Environmental Crimes Law (Law No. 9.605/98) establishes criminal and administrative sanctions for a wide range of environmental crimes, including those related to mining. Penalties may include imprisonment, detention, and fines, depending on the severity of the crime. The law covers everything from pollution and illegal mining to deforestation and the destruction of protected areas.

Sources

Law No. 9,605, of February 12, 1998

Are there clear legal sanctions for environmental crimes related to ASM?

1.0

Criterion 73

Justification

Yes, Brazilian law enforcement agencies, especially the Federal Police, have been carrying out large-scale operations to dismantle criminal networks involved in the illegal gold trade. Operation Munduruku and Operation "Mercado B" are examples of actions that targeted not only the miners, but the entire criminal chain, including financiers, transporters, and traders.

Sources

Operation Munduruku advances in the fight against illegal mining and enters a new phase of action
Federal Police intensify the fight against the illegal gold trade in the Legal Amazon

Are criminal networks involved in illegal gold trade targeted by enforcement agencies?

1.0

Criterion 74

Justification

Yes, economic sanctions are applied. The Supreme Court's decision to eliminate the presumption of good faith has increased the responsibility of companies that buy gold. Furthermore, enforcement operations have resulted in multimillion-dollar fines, asset seizures, and the freezing of accounts of companies and individuals involved in the illegal gold trade. The largest gold seizure in the history of the Federal Highway Police (PRF), in August 2025, is an example of the economic impact of enforcement actions.

Sources

AGU calls for stricter oversight of the gold trade
Federal Government operation against illegal gold mining seizes largest amount of gold in PRF history

Are economic sanctions applied to companies or individuals trading in illicit gold?

1.0

Criterion 75

Justification

Yes, environmental and mining authorities can impose administrative sanctions independently of a criminal proceeding. The Environmental Crimes Law and Decree No. 6,514/08 establish the independence of the administrative, civil, and criminal spheres. This allows IBAMA, ICMBio, and ANM to apply fines, embargoes, and other administrative sanctions quickly and effectively, without having to wait for the outcome of a criminal trial.

Sources

Law No. 9,605, of February 12, 1998
Decree No. 6,514, of July 22, 2008
ANM Resolution No. 122, of November 28, 2022

Can environmental and mining authorities impose sanctions independently of a criminal process (administrative sanctions)?

1.0

Criterion 76

Justification

Brazil has a solid legal basis for applying sanctions based on remote evidence. Law 9.605/98 (Environmental Crimes Law) establishes that officials from environmental agencies that are part of SISNAMA (National Environmental System) are competent to issue environmental infraction notices. Decree 6.514/08 regulates administrative procedures, including the possibility of applying preventive measures such as embargoes and seizures from the moment the infraction notice is issued.

The jurisprudence of the Superior Court of Justice (STJ) has consolidated the understanding that evidence obtained remotely is reliable and has superior precision for assessing environmental damage. The Amazon Protects Program, conducted by the Federal Public Prosecutor's Office since 2017, has created important precedents by exclusively using satellite images cross-referenced with public databases (CAR, SIGEF/INCRA) to support public civil actions.

Sources

1. *oeco* - "Use of satellite imagery to punish deforesters begins to gain acceptance in Brazil" (07/05/2022)

•URL:

<https://oeco.org.br/noticias/uso-de-imagens-de-satelite-para-punir-desmatadores-comeca-a-ser-aceito-no-brasil/>

2. Remote Sensing Center - IBAMA

•URL: <https://siscom.ibama.gov.br/>

3. Legal Consultant - "Environmental violation notices based on remote sensing" (07/09/2022)

•URL: <https://www.conjur.com.br/2022-jul-09/ambiente-juridico-autos-infracao-ambiental-base-sensoriamento-remoto/>

4. IBAMA - "Operation Coatá against illegal mining on indigenous lands and protected areas" (02/25/2025)

•URL: <https://www.gov.br/ibama/pt-br/assuntos/noticias/2025/ibama-deflagra-operacao-coata-contra-o-garimpo-ilegal-em-terras-indigenas-e-areas-protegidas>

5. G1 - "Environmental injunctions: federal government resumes use of satellite imagery to suspend activities with environmental impact" (07/01/2023)

Amazon Mining Policy Scoreboard

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